

HOUSE No. 3455

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel Cahill

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to permitting of electric vehicle charging stations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>1/16/2025</i>

HOUSE No. 3455

By Representative Cahill of Lynn, a petition (accompanied by bill, House, No. 3455) of Daniel Cahill relative to permitting of electric vehicle charging stations. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to permitting of electric vehicle charging stations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 40. (a) By no later than twelve months following enactment of this
2 legislation, each local unit of government shall adopt a land use ordinance or bylaws that:

3 (1) create an expedited, streamlined permitting process for electric vehicle charging
4 stations, including electric vehicle charging stations installed in the public right-of-way, with
5 binding timeline for the review and approval of permit applications not to exceed thirty days;

6 (2) classify all levels of electric vehicle charging stations as permitted accessory and
7 primary use in all zoning districts;

8 (3) address electric vehicle charging in parking minimum requirements, specifically that
9 a parking space served by an electric vehicle charging station or any parking spaces used to site
10 electric vehicle charging equipment must be counted as at least one standard automobile parking
11 space and that any van-accessible parking space shall count as at least two standard automobile

parking spaces for the purpose of complying with any applicable minimum parking requirements;

(4) specify that review of applications to install electric vehicle charging stations, including electric vehicle charging stations installed in the public right-of-way, shall be limited to the building official's review of whether the installation meets all health and safety requirements under local, state, and federal law and shall be administratively approved through the issuance of a building permit or similar nondiscretionary permit.

(h) The department of energy resources and Massachusetts department of transportation, in consultation with the appropriate and affected parties, by no later than six months following enactment of this legislation, shall develop and publish a model land use ordinance that local governments may elect to adopt. Upon completion, the department of energy resources and Massachusetts department of transportation must post the model ordinance to the department's internet website and notify local units of government of its availability.

(i) The department of energy resources and Massachusetts department of transportation may periodically publish amendments to the model ordinance to reflect increased electric vehicle adoption and technological advances in the State. Any update shall not require a rulemaking process. Upon completion of any amendment, the department of energy resources and Massachusetts department of transportation must post the updated model ordinance to the department's internet website and notify local units of government of the amendments.